

Court No. - 18

Case :- CONTEMPT APPLICATION (CIVIL) No. - 669 of 2022

Applicant :- Ram Kumar Singh

Opposite Party :- Praveen Kumar Maurya, Exe.Engineer, Dakshinanchal Vidyut Vitran Nigam, Aligarh

Counsel for Applicant :- Arun Kumar Dwivedi, Manoj Kumar Dwivedi

Hon'ble Alok Mathur, J.

1. Heard Sri Balram Yadava, learned counsel for applicant. Who submits that the order dated 31.07.2015 passed in Writ Petition No. 4403 (MS) of 2015 has not been complied with.

2. Having heard learned counsel for applicant and perusing the record, I am satisfied that a case is made out under Rule 5 of Chapter XXXV-E of Allahabad High Court Rules, 1952 (Rules framed under Section 23 of the Contempt of Courts Rules Act, 1971) requiring to call upon contemnor opposite party Sri Praveen Kumar Maurya, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, Ltd., Vidyut Vitran Khand-VI, Aligarh to submit his reply in person or through counsel to the following charge:-

"Why contemnor opposite party Sri Praveen Kumar Maurya, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, Ltd., Vidyut Vitran Khand-VI, Aligarh be not punished for willful and deliberate disobedience of the judgment and order dated 31.07.2015 passed in Writ Petition No. 4403 (MS) of 2015 ?"

3. Notices be issued fixing 19.05.2022.

4. Learned counsel for applicant shall take steps within one week.

5. List this case on 19.05.2022.

(Alok Mathur, J.)

Order Date :- 5.4.2022

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Hon'ble Alok Mathur, J.

1. Sri Amarjeet Singh Rakhra, learned counsel has put in appearance has filed his Vakalatnama on behalf of the opposite party, the same is taken on record.
2. Heard Sri Manoj Kumar Dwivedi, learned counsel for the applicant as well as Sri Amarjeet Singh Rakhra, learned counsel for the opposite party.
3. Learned counsel for the applicant submits that present contempt petition has been preferred alleging wilful disobedience of the interim order dated 31.07.2015 passed in Writ Petition No. 4403 (M/S) of 2015, which was filed by the Dakshinanchal Vidyut Nigam Ltd., through Executive Engineer, assailing the order of the U.P. Electricity Regulatory Commission whereby the Commissioner has imposed a penalty of Rs.10,000/- on the officers of the respondent Corporation.
4. Learned counsel for the applicant further submits that by means of the order dated 31.07.2015, the licensee was directed to prepare the bills in terms of the statutory provisions contained in Clauses 5.6 and 5.7 of the Electricity Supply Code, 2005. Any such demand which may be made in terms of the aforesaid provisions shall, however, be subject to further orders of the Court. It is stated that the opposite parties have issued a recovery certificate dated 10.12.2021 on the basis of which, it is alleged that the opposite parties have violated the interim order of this Court dated 31.07.2015.
5. Sri Amarjeet Singh Rakhra, learned counsel for the opposite party submits that against the aforesaid recovery certificate, the applicant has already preferred statutory remedy before the authority concerned (Electricity Ombudsman) in the shape of Representation No. 70/2022, which is pending for consideration before the authority concerned. He further submits that it is only by the interim order passed by the Writ Court vide order dated 31.07.2015 was only with regard to preparation of bills

and the entire controversy is pending consideration before the Writ Court and even it has further been clarified that whatever order of demand is made, the same shall be subject to further orders of this Court.

6. Having heard learned counsel for the parties, it is noticed that by means of the interim order dated 31.07.2015 certain directions were issued, which was subjected to the orders of this Court. In the meanwhile, some recovery certificates have been issued for which it is alleged that the same has been passed in disobedience of the order of the Writ Court. The applicant has already taken shelter before the ombudsman, assailing the recovery order, and has also preferred the present contempt petition. The exercise of contempt jurisdiction is discretionary. In the present case it is not the case of the applicant that the bills have been made de-hors of the provisions contained in Clauses 5.6 and 5.7 of the Electricity Supply Code, 2005

7. A perusal of the order dated 31.07.2015 nowhere constrained the opposite parties from raising said demands. May be the said demands were not strictly in accordance with law but in any view of the matter the same can be assailed, which has in fact been challenged by the applicant before the appropriate authority.

8. Considering the fact that the entire controversy is pending consideration before the Writ Court and also that this Court is satisfied that by raising said recovery certificate there is no disobedience of the order of the Writ Court and hence, this Court is of the view that the present contempt petition is devoid of merits and is accordingly dismissed. Notices issued to the opposite parties stand discharged.

9. It is, however, clarified that the applicant can avail the statutory remedy against the said recovery certificate, if he so chooses.

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(Alok Mathur, J.)

Order Date :- 19.5.2022

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